

		jurisdiction on claims related to its activities in California under a specific jurisdiction analysis. The inquiry focuses on the relationship between the defendant, the forum, and the litigation. (<i>Walden v. Fiore</i> (2014) 571 US 277, 283-284.) For the state to exercise jurisdiction over a defendant consistent with due process, "the defendant's suit-related conduct must create a substantial connection with the forum State." (<i>Id.</i> at p. 284; <i>Bristol-Myers Squibb Co. v. Sup.Ct. of Calif., San Francisco County</i> (2017) 582 US 255, 262-268.) Such "specific" personal jurisdiction requires a showing of: (1) purposeful availment—the out-of-state defendant purposefully established contacts with the forum state; (2) arising out of—the plaintiff's cause of action "arises out of" or is "related to" the defendant's contacts with the forum state; and (3) reasonableness—the forum's exercise of personal jurisdiction in the particular case comports with "fair play and substantial justice." (<i>Burger King Corp. v. Rudzewicz</i> (1985) 471 US 462, 477-478; <i>Vons Cos., Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 446.) Plaintiff does not dispute that the defendant has resided in Arizona since August 2021. (<i>Fenton v. Bd. of Directors</i> (1984) 156 Cal.App.3d 1107, 1116 - "the test for determining a person's domicile is physical presence plus an intention to make that place his permanent home.") There is no evidence that Trevino has had any contact with California since August 2021 which related to the cats. There is no evidence the cats have resided anywhere but Arizona since August 2021. The alleged wrongful conduct of failing to return the cats occurred while Trevino and the cats resided in Arizona. While plaintiff argues the Defendant's acts were "expressly aimed at plaintiff, a resident of the forum state," such is insufficient. (<i>Walden v. Fiore</i> (2014) 571 U.S. 277, 289-90 - "mere injury to a forum resident is not a sufficient connection to the forum.") Accordingly, plaintiff has failed to establish facts showing either general or specific jurisdiction. The motion is therefore GRANTED and the plaintiff's complaint against Defendant Anthony Trevino is DISMISSED, without prejudice. <i>Mr. Trevino is ordered to give notice of this ruling.</i>
2.	Murphy v. General Motors, LLC 24-1403247	<i>(The Court will hear argument on the sanctions issue)</i>
3.	Marinez v. Garden Grove Post Acute LLC 24-1441969	<i>(No tentative, as this case appears to be related to 2 other matters in CX-102 and parties have failed to file required Notice of Related cases)</i>
4.	Mott v. Fortiva Financial, LLC 25-1476893	Before the Court is a motion to compel arbitration filed by defendant Fortiva Financial, LLC (Defendant) against plaintiff Lynda Mott (Plaintiff). For the reasons set forth below, the motion is DENIED. Defendant argues the Federal Arbitration Act ("FAA") applies. The FAA generally governs arbitration in written contracts involving interstate

commerce and authorizes enforcement of arbitration clauses unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct. (Turner)*(2005) 127 Cal.App.4th 197, 211-214.)

Defendant produced some evidence of interstate commerce. (Arshad Decl. Ex. G; Hopkins-Donihe Decl. ¶¶ 2, 13, 16; Compl. ¶ 23.) Plaintiff neither disputes nor confirms whether the FAA applies. But whether the FAA applies is not really at issue because Defendant does not contend that any state law is preempted by the FAA. In fact, Defendant also cites to the California Arbitration Act in support of the motion. (Motion, p. 10.)

The enforcement language of the FAA is almost identical to *Code of Civil Procedure section 1281*. Just like a motion to compel arbitration under the California Arbitration Act, *Code of Civ. Proc. § 1280 et. seq.*, a motion to compel arbitration under the FAA requires a finding that an agreement exists for arbitration between the parties and the agreement covers the dispute. (*AT&T Technologies, Inc. v. Communications Workers of America* (1986) 475 U.S. 643, 648-49.) State law applicable to contracts generally governs whether a valid agreement to arbitrate exists. (*Perry v. Thomas* (1987) 482 U.S. 483, 492, fn. 9; *Stutler v. T.K. Contractors, Inc.* (6th Cir. 2006) 448 F.3d 343, 347; *Metters v. Ralphs Grocery Store Co.* (2008) 161 Cal.App.4th 696, 701 (“federal policy in favor of arbitration does not come into play . . . until a court has found the parties entered into a valid contract under state law.”).)

Thus, whether the FAA applies or not, the question is whether there is a valid, enforceable arbitration agreement and whether grounds exist for its revocation under California law.

To form a contract under California law, there must be mutual assent. (*Herzog v. Super. Ct.* (2024) 101 Cal.App.5th 1280, 1293-1294; *Long v. Provide Commerce, Inc.* (2016) 245 Cal.App.4th 855, 862.) “[M]utual manifestation of assent, whether by written or spoken word or by conduct, is the touchstone of contract.” (*Long*, at p. 862, internal quotes omitted.)

Defendant produced the Cardholder Agreement for the credit card account ending in 0144, which includes an arbitration provision that covers claims related to the application for or issuance of the account, use of the credit card account and statements related to the account. (Hopkins-Donihe Decl., Ex. C at p. 5.) In the complaint, Plaintiff alleges she is the victim of identity theft and that she did not authorize or consent to the application for, or use of, the credit card ending in 0144, or otherwise agreed to the Cardholder Agreement. (Compl. ¶¶

		23-40.) The arbitration agreement covers the claims, but only if Defendant can meet its burden Plaintiff was not actually the victim of identity theft and was in fact, the person who applied for and used the credit card. Here, Defendant has not shown by a preponderance of the evidence that Plaintiff assented to the terms of the Cardholder Agreement, including the arbitration provision. Defendant's timeline and description of events, including phone calls from Plaintiff's phone number evidencing consent, is consistent with identity theft, including a person hacking into someone's computer or phone and falsely pretending to be that person. The actions taken by Plaintiff are also consistent with a person whose identity has been stolen and trying to correct the issue. (Hopkins-Donihe Decl. ¶¶ 8-16, 19, Ex. F; Mott Decl. ¶¶ 2-19, Exs. A, B.) Defendant failed to meet its burden showing a valid and enforceable arbitration agreement between the parties. The motion is therefore DENIED. <i>Counsel for Plaintiff shall provide notice of this ruling.</i>
5.	Williams v. Southern California Edison 23-1300300	The motion to bifurcate and try issues of causation in advance of issues of damages filed by defendant Southern California Edison Company (Defendant) is DENIED. <i>Code of Civil Procedure section 598</i> provides that the court may order certain issues tried before others "when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby[.]" (<i>Code Civ. Proc.</i>, § 598.) Similarly, <i>Code of Civil Procedure section 1048(b)</i> provides: "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." (<i>Code Civ. Proc.</i>, § 1048(b).) The Court has considered the arguments and evidence submitted by both parties and determines, at this time, bifurcation as requested by Defendant is not warranted. Accordingly, the motion is DENIED. <i>Counsel for Plaintiffs shall give notice of this ruling.</i>
6.	Auto Finance Solutions, LLC v. Prestige Kia Riverside 25-1500766	(Off calendar)
7.	Raygoza v. Kia America, Inc. 25-1466366	Before the Court is a motion to strike filed by defendant Kia America, Inc. (Defendant) directed to the First Amended Complaint (FAC) filed by plaintiff Esperanza L. Batres Raygoza (Plaintiff). For the reasons set forth below, the motion to strike is DENIED.